

EMPLOYMENT CONTRACT FULL TIME (AWARD)

EXCELL PROTECTIVE GROUP Pty Ltd

ABN 33 150 159 701

**Trading as
EXCELL SECURITY**

And

Name

BACKGROUND

- A. The Employer has agreed to employ you and you have agreed to work for the employer in the position described in the Schedule.
- B. The Employer and you have agreed to enter into this contract to record the terms and conditions of your employment.
- C. The Employer acknowledges its obligation to apply the applicable employment protections to you and to abide by the provisions contained in any relevant legislation.

AGREEMENT

1. DEFINITIONS

Associated Entities has the same meaning as in the *Corporations Act 2001 (Cth)*.

Confidential Information means all the information including trade secrets, Intellectual Property, marketing and business plans, client and supplier lists, computer software applications and programs, business contacts, finance, data concerning the Employer or any of its associated entities or any client of the Employer's, finances, operating margins, prospect's lists, and transactions of the Employer, but does not include information in the public domain otherwise than through a breach of an obligation of confidentiality.

Contract means this employment contract.

Intellectual Property means all form of intellectual property rights throughout the world including but not limited to present and future copyright, registered and unregistered trademarks, patent, design, rights, trade mark, any other intellectual or industrial property rights, discovery, invention, secret process or improvement in procedure of any kind whether arising from statute, under common law or in equity and confidential information including know-how and trade-secrets.

Moral Rights has the meaning given to it in the *Copyright Act 1968 (Cth)* and includes rights of integrity of authorship, rights of attribution of authorship and similar rights that exist or may come to exist anywhere in the world.

The Act means the *Fair Work Act 2009 (Cth)*.

Works means all inventions, policies, practices, designs, drawings, plans, software, hardware, reports, documents, systems, improvements and other materials.

2. COMMENCEMENT AND WARRANTIES

- (a) Your date of commencement of employment with the Employer is identified in the Schedule.
- (b) The terms and conditions of your employment will be in accordance with the Contract and, where applicable, the Industrial Instrument as named in the Schedule (the Industrial Instrument), as varied and amended from time to time.

You agree that you:

- (a) hold the qualifications and have the skills as represented by you to the Employer,
- (b) have disclosed to the Employer any restraint or restriction which may affect your performance of work,
- (c) enter into this Contract without any form of coercion,
- (d) are legally entitled to work in Australia, and agree to produce the appropriate documentation where requested by the Employer, and
- (e) have and will maintain the licences and qualifications necessary to fulfil your role.

3. PROBATION

- (a) Your employment is probationary for the first six months of employment.
- (b) During the probationary period, your employment may be terminated in accordance with the Industrial Instrument.
- (c) The Employer may at its discretion extend the probation period.

4. POSITION AND TITLE

- (a) You are employed on a full time basis in the position described in the Schedule.
- (b) You may be required to perform other tasks from time to time, as reasonably requested by the Employer.

5. PRINCIPAL DUTIES

- (a) You have general duties to:
 - i. comply with reasonable directions given to you by your employer,
 - ii. at all times act faithfully, honestly and diligently,
 - iii. ensure you are performing solely work related activities in work time,
 - iv. exhibit a professional and courteous attitude when dealing with the Employer, its customers, employees, suppliers and other members of the public, and
 - v. act in the Employer's best interest.

6. EMPLOYER POLICIES AND PROCEDURES

You agree that:

- (a) you will comply with all the Employer's policies and procedures, as amended from time to time at the sole discretion of the Employer,
- (b) the specific detail of the Employer's policies do not form a term of your contract, and
- (c) failure to comply with the Employer's policies and/or reasonable management instruction may result in disciplinary action in accordance with the policies and procedures of the Employer. This disciplinary action may include warnings (whether written or verbal), a reduction in classification, position and/or remuneration, and up to and including dismissal.

7. SECURITY LICENCE

- (a) You are required to hold and maintain a Security Licence for the location and work to be undertaken;
- (b) the Employer reserves the right to terminate your employment without notice in the event that you do not maintain this licence to its satisfaction and are unable to perform the requirements of your role.

- (c) You must notify the Employer immediately in the event that you no longer hold, or are no longer eligible to hold, this licence.

8. OTHER LICENCES, REGISTRATIONS AND CLEARANCES

- (a) You are required to hold and maintain other licences, registrations and clearances as required by the law or the client for the location and work to be undertaken:
- (b) the Employer reserves the right to terminate your employment without notice in the event that you do not maintain this licence, registration and clearance to its satisfaction and are unable to perform the requirements of your role.
- (c) You must notify the Employer immediately in the event that you no longer hold, or are no longer eligible to hold, this licence, registration or clearance.

9. NATIONAL POLICE CHECK

- (a) You may be required to undergo a National Police Check as an essential requirement of your role.
- (b) The Employer may require you to repeat this check at any reasonable time during your employment.
- (c) the Employer reserves the right to terminate your employment without notice in the event that you do not pass this check to its satisfaction and are unable to perform the requirements of your role.
- (d) You must notify the Employer immediately in the event that you no longer hold, or are no longer eligible to hold, this clearance.

10. WORKING WITH CHILDREN CHECK

- (a) You may be required to undergo a Working with Children check as an essential requirement of your position.
- (b) The Employer may require you to provide evidence that you hold the check at any time during your employment.
- (c) The Employer reserves the right to terminate your employment without notice in the event that you fail to maintain this clearance and are unable to perform the requirements of your role.
- (d) You must notify the Employer immediately in the event that you no longer hold, or are no longer eligible to hold, this clearance.

11. PRE-EMPLOYMENT MEDICAL EXAMINATION

- (a) You may be required to undergo a pre-employment medical examination. The purpose of this medical examination is to determine whether there are any pre-existing conditions which may prevent or impact upon the efficient performance of your duties.
- (b) Evidence that you have undertaken this medical examination must be provided to the Employer prior to the commencement date, along with the required form confirming your fitness to perform your role.
- (c) In the event the medical examination indicates any pre-existing conditions which may prevent or impact upon the efficient performance of your duties, the Employer reserves the right to withdraw this offer of employment.

12. PLACE OF EMPLOYMENT

- (a) Your principal place of employment will be at the location described in the Schedule, or as otherwise reasonably directed by the Employer.

- (b) The nature of the role and the business will require you to travel to, and work at, client sites within a reasonable travelling distance as directed by the Employer.

13. HOURS OF WORK

- (a) The business' normal span of hours of operation are outlined in the Schedule.
- (b) Your hours of work are outlined in the Schedule. These hours of work may be subject to variation as agreed between you and the Employer, in writing from time to time.
- (c) In addition to those hours, you may also be required to work reasonable additional hours.

14. TIME RECORDING

- (a) You are required to complete regular time recordings as directed by management.
- (b) You are responsible for the completion of your own time record. Completing time records on behalf of another employee or permitting another employee to do so on your behalf, may result in disciplinary action, up to and including dismissal.
- (c) Time records are to be completed in the manner and locations as directed by the Employer and failure to do this may result in disciplinary action.

15. REMUNERATION

- (a) Your pay is set out in the Schedule.
- (b) You will be entitled to any applicable penalty rates, overtime rates, allowances or loadings appropriate to your position as set out in the Industrial Instrument.
- (c) Where your pay exceeds any legislative and Industrial Instrument minimum entitlements, any amount paid in excess of these minimum entitlements may be used to offset any entitlement that may otherwise have been applicable.
- (d) The Employer will make Superannuation contributions on your behalf in accordance with legislation.

16. ANNUAL AND LONG SERVICE LEAVE

- (a) You will accrue up to four weeks of annual leave each year in accordance with the Act.
- (b) You will be paid annual leave loading in accordance with the Industrial Instrument. Annual leave is to be taken within the year following its accrual. Agreement from the Employer is required to vary this.
- (c) Long service leave will accrue in accordance with the relevant legislation.

17. PERSONAL/CARER'S AND OTHER LEAVE

- (a) You will accrue up to 10 days of paid personal/carer's leave for each year of service in accordance with the Act.
- (b) To be entitled to a period of paid or unpaid personal/carer's leave, you must provide satisfactory documentary evidence in accordance with the Employer's policies.
- (c) All other leave, including compassionate leave, parental leave and community service leave, will be provided to you in accordance with the Employer's policy and/or the Act, whichever is more generous.

18. PUBLIC HOLIDAYS

You are entitled to be absent from work on a day or part day that is a public holiday in accordance with the Act, unless reasonably required to work by the Employer.

19. DISCRETIONARY PAYMENTS

- (a) The Employer may from time to time elect to pay a discretionary payment such as an incentive based payment upon various considerations, including the profitability and future forecasts of the business and your performance.
- (b) Any payments made will be entirely discretionary and the Employer reserves the right to vary, alter or withdraw its arrangements without notice.
- (c) It is a condition of any arrangement that you are employed by the Employer at the time any payment falls due.

19. COMPANY MOTOR VEHICLE

- (a) You may, from time to time, be required to use a company vehicle to enable you to efficiently perform your duties. This vehicle is provided solely for work-related use.
- (b) The continued provision of a company motor vehicle is conditional upon you at all times holding a valid driver's licence.
- (c) The type of company motor vehicle provided is at the discretion of management, and may be swapped at any time in accordance with the Employer's operational requirements.
- (d) This motor vehicle must be returned to the Employer when not used for work purposes, unless otherwise agreed.
- (e) Additional rules regarding vehicles and driving are set out in the relevant instruction which you are expected to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.

20. COMPANY FUEL CARD

- (a) You may be provided with a company fuel card in order to complete your duties as directed by the Employer. This fuel card may only be used for business purposes.
- (b) Additional rules regarding vehicles and driving are set out in the Handbook which you are expected to read and fully comply with. The Employer reserves the right to vary, alter or withdraw these arrangements and will provide reasonable notice of any such changes.

21. COMPANY MOBILE PHONE

- (a) You may be provided with a company mobile phone in order to complete your duties as directed by the Employer.
- (b) This mobile phone may only be used for business purposes. Reasonable personal use is only permitted where specifically authorised by the Employer.
- (c) The use of the company mobile phone is subject to the terms and conditions contained within the Handbook.

22. COMPANY PROPERTY

- (a) You may be provided with company property in order to complete your duties as directed by the Employer.
- (b) This property may only be used for business purposes. Reasonable personal use is only permitted where specifically authorised by the Employer.

- (c) The use of the company property is subject to the terms and conditions contained within the Handbook.

23. CONFIDENTIAL INFORMATION

You agree at all times during and after your employment with the Employer:

- (a) to refrain from directly or indirectly disclosing to a third party Confidential Information except in the proper course of carrying out your duties,
- (b) only to use the Confidential Information for the benefit of the Employer,
- (c) to keep confidential all Employer Confidential Information, and
- (d) to comply with the terms of this Contract unless otherwise required by applicable laws or regulations.
- (e) You may be required to enter into a formal confidentiality agreement. Failure to do this may result in either disciplinary action up to and including dismissal.

24. INTELLECTUAL PROPERTY

- (a) All Intellectual Property rights arising from any Works created or developed by you in the course of your employment (whether alone or with others) will belong to the Employer and you agree to immediately disclose to the Employer all such Works.
- (b) You agree that all existing Intellectual Property rights, title and interest in all Works created or developed by you in the course of your employment (whether alone or with others) are vested in the Employer and upon their creation, all such rights will vest in the Employer. You agree to execute all documents and do all acts required to secure any Intellectual Property rights for the Employer.
- (c) For the benefit of the Employer, you consent to any and all acts or omissions (whether occurring before or after this consent is given) in relation to all Works made or to be made by you in the course of your employment which might otherwise infringe your Moral Rights in those Works.
- (d) You warrant that you have consented without coercion or without relying on any representations other than those set out in this Contract.

25. NON-DISPARAGEMENT

You must not at any time, either during your employment, or at any time after termination, disparage or otherwise make any statement, or permit or authorise any statement to be made, which is calculated or reasonably likely to damage the reputation or cause other damage to the Employer or any Associated Entity, or any of their respective employees or officers.

26. RELIEF FROM DUTIES

- (a) Without limiting anything the Employer may require you to do, the Employer may, at any time during your employment (including during any notice period) require you to:
 - i. not undertake any of your employment duties
 - ii. carry out alternate duties
 - iii. perform work in a different physical location or from your home
 - iv. not attend work or any premises operated by the Employer, its Associated Entities or clients
 - v. not access the computer systems of the Employer or its Associated Entities
 - vi. not have any contact with any clients, suppliers or employees of the Employer or its Associated Entities, or other persons or entities as advised by the Employer and/or

- vii. not use or otherwise immediately return Employer property to the Employer,

provided the Employer continues to make payment to you of your remuneration during the period in which you are directed to do any of the above.

- (b) The circumstances in which the Employer may give you such direction includes, but is not limited to, circumstances in which the Employer is carrying out an investigation into allegations of misconduct (whether or not such allegations have been made against you) or in circumstances whereby such action is deemed necessary by the Employer to ensure it satisfies its health and safety obligations.
- (c) Nothing in this clause in any way limits the Employer's right to stand you down without pay in accordance with any applicable legislation or in accordance with any other provision of this Contract.

27. TERMINATION OF EMPLOYMENT

- (a) The Employer may terminate your employment without notice or without a payment in lieu of notice for any of the following reasons, if you:
- i. commit any serious or persistent breach of any of the terms of the Contract
 - ii. are guilty of dishonesty, misconduct or neglect in the performance of your obligations under the Contract
 - iii. become insolvent or bankrupt or make any assignment or arrangement with your creditors
 - iv. are convicted of any criminal offence relevant to the performance of your obligations under the Contract
 - v. refuse to comply with any reasonable instruction or direction including any failure to comply with your obligations under any Employer's rules, policies and/or procedures and any directions given by Employer's management
 - vi. fail to perform to the standard reasonably expected by the Employer, including persistent failure to achieve targets
 - vii. obtain a medical assessment result that is not satisfactory to the Employer and which objectively results in you being unable to perform your duties set out in the Contract
 - viii. abuse alcohol or drugs whilst on the Employer's premises, or just prior to commencing work on the premises, which adversely affects your ability to carry out your duties or
 - ix. engage in physical abuse or display unreasonable verbal aggression.
- (b) Following completion of your probationary period, at any time during the operation of the Contract, the Employer may terminate your employment by providing written notice in accordance with the Industrial Instrument.
- (c) If you are over the age of 45 years and have at least two years' service, you are entitled to one additional week's notice of termination.
- (d) You may terminate this Contract at any time by with 2 weeks notice.
- (e) The Employer may, at its discretion, make payment to you in lieu of all or part of this notice period. On termination, you are also entitled to payment for any untaken annual leave entitlements.
- (f) On termination of employment for any reason, you must immediately return to the Employer all property, documents and items relating to the business of the Employer which you have in your possession or control. This includes, but is not limited to, any car, equipment, papers, keys, reports, computers, information, programs, records and documents, intellectual property and other information, in whatever form, relating in any way to the Employer or its clients.

- (g) On termination of employment for any reason, you must also irretrievably delete any Confidential Information stored on any computer, magnetic or optical disk or memory, and all matter derived from those sources in your possession, custody, care or control outside the Employer's premises.
- (h) You will repay to the Employer the balance of any loans or advances made by the Employer against your pay or leave entitlements, or any money otherwise owed to the Employer by you. The Employer reserves the right to act to recover any monies owing to the Employer.

28. NON-SOLICITATION

- (a) During your employment and from the date this contract ceases, you agree that you will not directly or indirectly, whether for your own benefit or for the benefit of another entity, solicit, canvass, approach (or attempt to solicit, canvass or approach) or accept an approach from a client of the Employer for a period of 3 months.
- (b) Each of the above obligations are separate and independent obligations. In the event that one or more of the obligations are found to be unenforceable, the remaining obligations will continue to apply.

29. REDUNDANCY

If your position is made redundant, you shall not be entitled to any payment except as required under the Act.

30. ASSIGNMENT

You may not assign or transfer the rights and benefits under this Contract. The Employer may assign its rights and obligations under the Contract to any person, business, company or entity.

31. GOVERNING LAW

The Contract shall be governed by the jurisdiction of the courts in the State or Territory as described at Error! Reference source not found. **of the Schedule.**

32. VARIATION OF TERMS

The terms of the Contract may be varied from time to time by mutual agreement in writing between the parties.

33. SEVERABILITY

If any of the terms and conditions of the Contract are void, or become voidable by reason of any statute or rule of law then that term or condition shall be severed from the Contract without affecting the enforceability of the remaining terms and conditions.

34. ENTIRE AGREEMENT

The contents of the Contract constitute the entire agreement between you and the Employer. Any previous agreements, understandings, and negotiations on this subject matter cease to have effect.

35. FAIR WORK INFORMATION STATEMENT

By signing the Contract you acknowledge that the Employer has provided you with a copy of the Fair Work Information Statement.

SCHEDULE TO EMPLOYMENT CONTRACT

Item 1	Employer name and details	Excell Protective Group Pty Ltd trading as Excell Security ABN: 33 150 159 701 Address: 4 Blackwood Drive, Altona North VIC 3025
Item 2	Your name and details	Name
Item 3	Position	Security Officer
Item 4	Commencement Date	TBC
Item 5	The Industrial Instrument	Security Services Industry Award 2020
Item 6	Location	4 Blackwood Drive, Altona North VIC 3025
Item 7	Business normal hours of operation	0600 to 1800 weekdays.
Item 8	Your hours of work	38 hours per week as agreed with the Employer.
Item 9	Pay	As per the relevant Award
Item 10	Governing Law	Victoria, Australia

SIGNED BY AN AUTHORISED OFFICER OF THE EMPLOYER

Signature of Authorised Officer

Signature of Witness

Name & Title of Authorised Officer

Name & Title of Witness

Date: _____

SIGNED BY YOU

Signature of Authorised Officer

Signature of Witness

Name & Title of Authorised Officer

Name & Title of Witness

Date: _____